under TADA for creating a ruckus at Byculla market in Bombay by wielding a gun, which turned out to be a toy gun. They were detained for two years before they could secure bail.[7] In another instance, three boys were arrested for possessing 'sutli' bombs – commonly used as firecrackers – and spent four years in prison.[8] A series of cases where TADA was applied to gangsters or ordinary criminals (including a garment exporter suspected of tax evasion) in Maharashtra compelled the additional public prosecutor, in 1991, to concede that TADA was being misapplied.[9]

Since TADA made it harder to secure bail than the ordinary criminal law, it also became a trend for the police to bring TADA charges to keep a defendant in prison when he secured bail. The Maharashtra Police, for instance, charged a man accused of threatening and chasing a driver with a knife under TADA after they were incensed by the success of his bail application.[10] The Punjab director general of police, in 1987, virtually admitted that TADA was used as a tool for preventive detention.[11] As one scholar put it, TADA 'enabled pervasive use of preventive detention and a variety of abuses by the police, including extortion and torture'.[12]

Together with the frivolous and inappropriate, there were also the politically motivated. A journalist was arrested for writing about militants attaching posters to village walls in Assam. In another case, the leader of a Muslim women's organization was incarcerated with her one-year-old son.[13] Those with access to the corridors of power managed to escape more quickly. Shabnam Lone, the daughter of Abdul Ghani Lone (the founder of the People's Conference in Kashmir) and a junior in the chambers of prominent senior advocate K.K. Venugopal, was arrested under TADA. She secured bail within hours by filing a petition directly in the Supreme Court.[14] The unconnected weren't quite so lucky.

Soon after TADA was implemented, petitions challenging its validity on constitutional grounds began to be filed in the Supreme Court. The number of petitions challenging TADA increased over time, some reports suggesting that over a thousand petitions had been filed by 1991.[15] Even as tens of thousands of people were charged under TADA, these petitions gathered dust in the Supreme Court's roster. In an interview a full seven years after